

		14. Paragraph 18 should include a reference to Civil Procedure Code section 664.6. 15. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to <u>April 25, 2024 at 2:00 p.m.</u> in Department CX104 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. <u>Status Conference</u> The court has read and considered plaintiff's case management conference statement filed December 21, 2023 (ROA 59). In light of the court's concurrent ruling on plaintiff's motion for approval of a PAGA settlement, the January 11, 2024 status conference is vacated. Clerk to give notice.
4	Mora v. Diamond ZB Staffing Services, LLC, et al. 2019-01104920	<u>Plaintiff's Motion for Issue, Evidentiary and Monetary Sanctions</u> Plaintiff Marisela Mora seeks issue and evidentiary sanctions against defendant Diamond ZB Staffing for allegedly violating the court's February 16, 2023 order (Judge Peter Wilson, ROA 260) and August 17, 2023 order (Judge Peter Wilson, ROA 435) directing Diamond ZB to provide Code-compliant responses, including document production, to plaintiff's Requests for Production (Set Two) Nos. 4, 5 and 6. Plaintiff seeks monetary sanctions in the amount of \$9,810 against Diamond ZB and its counsel, Michael Adreani and Chinye Uwechue of Roxborough, Pomerance, Nye and Adreani, LLP, jointly and severally. For the

		following reasons, plaintiff's motion is granted in part and denied in part. <i>Issue and evidentiary sanctions</i> Plaintiff asserts Diamond ZB has not complied with the court's February 16, 2023 and August 17, 2023 orders. Plaintiff argues Diamond ZB's most recent further responses to Request Nos. 4, 5 and 6 (Jusuf. Decl. Ex. 16, ROA 495), served in response to the August 17, 2023 order, do not comply with that order and, despite the court's instructions in its prior orders, remain deficient. The court has granted two prior motions to compel further responses to Request Nos. 4, 5 and 6. In its February 16, 2023 order, the court ruled: "RPD Nos. 1-6: These requests seek time records for Plaintiff and the other non-exempt employees at Capital Logistics, and thus seek documents that are relevant and reasonably calculated to lead to the discovery of admissible evidence. "Defendant's objections based on attorney-client privilege, work product and third-party privacy have no merit. The time records may be redacted to remove any personal identifying information, and/or may be subject to the stipulated protective order. Additionally, it is not apparent what attorney-client privileged information and/or work product would be included in time records. ROA 191, Sep. Stmt., pp. 1-11. "Defendant's argument that these requests are duplicative since it produced 32 pages of Plaintiff's personnel records is without merit. ROA 191, Sep. Stmt., pp. 1-11. The 32 pages did not contain time records for Plaintiff or any other non-exempt employee. ROA 199, Jusuf Decl., ¶12 and Ex. 11. "The Motion is GRANTED, and Defendant is Ordered to supplement its responses and produce records within 15 days. If there are any documents withheld on the basis of privilege, Defendant must also produce a privilege log identifying for each document the specific privilege asserted, within 15 days." 2/16/23 Order (ROA 260). In its August 17, 2023 order, the court ruled: "The Motion to Compel is GRANTED. Defendant is ordered to provide Code-compliant, verified responses to RPD Nos. 4, 5 and 6 without objection, except for privilege, within 10 days. To be clear, the responses should not attempt to reassert any objection that the Court already found to be without merit in its 2/16/2023 Minute Order or contain prefatory, boilerplate objections. If privilege is asserted, then Defendant must identify the specific privilege asserted and produce a privilege log. If Defendant will
--	--	--

		not produce a privilege then the reason for not doing so must be provided. "RPD Nos. 4, 5, and 6 seek Defendant's time records. "Defendant contends it has fully responded to RPD Nos. 4, 5 and 6, and provided verified supplemental responses and produced documents on June 7 and 13, 2023. ROA 401, ¶11, p. 5 and Exs. H and I. The same responses were re-served on July 12, 2023. ROA 420, Reply, p. 7:1-2 and Uwechue Decl., ¶10 and Ex. H. "The responses are deficient and fail to comply with the Court's 6/15/2023 Minute Order. Each of these responses include prefatory boilerplate language reasserting objections that the Court already found to be without merit in its 2/16/2023 Minute Order. Although Defendant was permitted to assert privilege, the basis for the privilege has not been identified. Moreover, Defendant improperly asserts CCP § 2030.230 in response to RPDs when that Code section has no application and may only be used in response to interrogatories. "Importantly, the responses also violate CCP §§ 2031.220, 2031.230 and 2031.240. Specifically, Defendant was required to respond by (1) agreeing to comply, (2) representing it is unable to comply, or (3) objecting to all or part of the demand. (Code Civ. Proc. § 2031.010.) If Defendant can only comply with a part of the RPD, then it must so state and produce responsive documents sorted and labeled to correspond with the categories in the document demand. (Code Civ. Proc. §§ 2031.220 and 2031.280 (a).) If Defendant is unable to comply in whole or in part, then it must so state and provide the reason why, such as the document never existed, has been lost or stolen, destroyed, or is not in its possession, custody or control and provide the name and address of the person who may have the document. (Code Civ. Proc. § 2031.230.) "The responses state that time cards / records in Defendant's possession have been produced but does not identify if Defendant is complying in whole or in part. Defendant also does not represent an inability to comply in whole or in part. But as Plaintiff points out, the RPDs seek time cards from October 1, 2018 through December 30, 2022 and Defendant has only produced records pertaining to four months, i.e. September – December 2019. ROA 411, Jusuf Decl., ¶¶14-15, 25, 26 and Exs. 13 and 14. Defendant must state whether it will comply or has an inability to comply and the reason why as to October 2018 – August 2019 and January 2020 – December 2020. Whether Defendant has such records is significant because its response to SI No. 17 indicates Defendant should have time cards which have not been produced. The unredacted hire list produced in response to SI No. 17 shows employees were hired for Capital's Riverside location at least by March 2019 and as late as February 2020 despite the representation in Defendant's interrogatory
--	--	---

		responses that it did not have employees in California after December 2019. See ROA 401, ¶¶3-8, pp. 2-5, Ex. B [e.g. Armando Becerra and Francisco Becerra, hire dates 2/14/2020; Christopher Bonaminio, hire date 3/12/2019; Robert Carver, hire date 3/19/19] and Ex. E2. “Similarly, Defendant must state whether it will comply and produce records showing meal periods and rest breaks from October 1, 2018 – December 2022, or if it has an inability to comply and the reason why.” 8/17/23 Order (ROA 435). Plaintiff seeks issue and evidentiary sanctions pursuant to Civil Procedure Code sections 2023.030(b) and 2023.030(c), which provide: “To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: . . . (b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses. (c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.” Civ. Proc. Code §2023.030(b), (c). Disobeying a court order to provide discovery is a misuse of the discovery process. Civ. Proc. Code § 2023.010(g). Civil Procedure Code sections 2031.310 and 2031.320 also provide for imposition of issue, evidence, or terminating sanctions “[i]f a party fails to obey an order compelling further response” (§ 2031.310(e)), or “[i]f a party then fails to obey an order compelling inspection” (§ 2031.320(c)). Although willfulness is not necessary to impose nonmonetary sanctions for disobedience of a court order (see, e.g., <i>New Albertsons, Inc. v. Superior Court</i> (2008) 168 Cal.App.4th 1403, 1423; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 991), it is a factor to consider in determining the appropriate sanction to impose. <i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 796. Other factors include: the time that has elapsed since the discovery was served, the importance of the
--	--	---

		information sought, whether the unanswered questions sought information that was difficult to obtain, the responding party's failure to comply with prior court orders, and whether allowing more time to respond would enable the responding party to provide the necessary information. <i>Id.</i> In addition, a court's decision on sanctions must be consistent with the public policies regarding discovery sanctions, i.e., enabling the propounding party to obtain the information sought rather than punishing a disobedient party, and not imposing sanctions solely for punishment (<i>Ghanooni v. Super Shuttle of Los Angeles</i> (1993) 20 Cal.App.4th 256, 262); compensating the propounding party for fees and costs incurred in enforcing discovery (<i>Deyo</i>, 84 Cal.App.4th at 262); and not imposing a sanction that would the propounding party more than it would have obtained had the responses been provided (<i>Caryl Richards, Inc. v. Superior Court</i> (1961) 188 Cal.App.2d 300, 303 (striking party's pleadings because of evasive interrogatory answers was excessive); <i>Rutledge v. Hewlett-Packard Co.</i> (2015) 238 Cal.App.4th 1164, 1195 (requested sanctions of "sweeping evidentiary conclusions" would have improperly provided windfall by relieving party of burden to prove liability theory)). Defendant's September 5, 2023 further responses (Jusuf Decl. Ex. 16, ROA 495) do not comply with the August 17, 2023 order. The responses still include prefatory, boilerplate objections and reassert objections the court already found to be inapplicable. See 8/17/23 Order ("To be clear, the responses should not attempt to reassert any objection that the Court already found to be without merit in its 2/16/2023 Minute Order or contain prefatory, boilerplate objections."). The responses still state that all of the timecards/records in Diamond ZB's possession have been produced, but do not state whether Diamond ZB is complying in whole or in part (Civ. Proc. Code §§ 2031.220), and do not provide the name and address of any person or organization who may have the document (Civ. Proc. Code § 2031.230). Diamond ZB provides no explanation for continuing to assert prefatory, boilerplate objections in light of the court's express instructions. It also provides no explanation for its failure to provide Code-complaint further responses, i.e., further responses that comply with all applicable sections of the Code of Civil Procedure, including sections 2031.220 and 2031.230, again despite the court's express instructions. Diamond ZB's conduct certainly warrants monetary sanctions, as discussed below. Diamond ZB's inexplicable conduct notwithstanding, Diamond ZB's verified September 5, 2023 further responses state that Diamond ZB has not withheld any documents responsive to Request Nos. 4, 5 or 6 from production, and that Diamond ZB cannot produce additional responsive documents because it does not have any more responsive documents. Jusuf Decl. Ex. 16,
--	--	--

		ROA 495. As such, plaintiff has obtained from Diamond ZB the information she requested with Request Nos. 4, 5 and 6, i.e., all of the responsive time records in Diamond ZB's possession, and a verification attesting that Diamond ZB has produced all responsive documents, has not withheld any responsive documents from production, and has no more responsive documents. The court thus finds no basis to impose the issue and evidentiary sanctions plaintiff seeks. <i>Monetary sanctions</i> Plaintiff also seeks monetary sanctions in the amount of \$9,810 (\$9,750 in attorneys' fees and a \$60 filing fee). Monetary sanctions may be awarded pursuant to Civil Procedure Code section 2023.030(a): "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. . . . If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Civ. Proc. Code § 2023.030(a). As discussed above, Diamond ZB offers no justification, much less substantial justification, for its failure to comply with the court's orders that it provide Code-complaint further responses and that it not assert prefatory, boilerplate objections. Diamond ZB's conduct caused plaintiff to incur time and expense revisiting issues the court had twice previously addressed. A substantial portion of plaintiff's motion focuses on Diamond ZB's failure to provide Code-compliant further responses and assertion (again) of prefatory, boilerplate objections—despite the court's prior orders. Accordingly, plaintiff's motion for monetary sanctions against Diamond ZB and its counsel Michael Adreani and Chinye Uwechue of Roxborough, Pomerance, Nye and Adreani, LLP, jointly and severally, is granted. Diamond ZB and its counsel are ordered to pay plaintiff \$7,560 (15 hours x \$500 per hour + \$60 filing fee) in monetary sanctions within 30 days. Plaintiff to give notice. <u>Defendant Diamond ZB Staffing Services, LLC's Motion for Relief from Waiver and Motion for Protective Order</u> Defendant Diamond ZB Staffing Services, LLC moves pursuant to Civil Procedure Code sections 128(a)(8) and 473(b) for relief from its waiver of objections to plaintiff Marisela Mora's Requests for Production of Documents (Set Three) (the "Third Set") by failing to serve timely responses. Diamond ZB also moves for a protective order relieving it from providing substantive responses
--	--	--

		and document production in response to Request Nos. 1, 2, 3, 4, 6, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25 and 26 in plaintiff's Third Set. For the following reasons, Diamond ZB's motions are denied. Plaintiff served Diamond ZB by email with the Third Set on August 9, 2023. Diamond ZB's responses were due on September 12, 2023. Diamond ZB served untimely responses and objections on September 14, 2023. Diamond ZB's counsel asserts she miscalendared Diamond ZB's response date while preparing to travel outside the United States. Counsel states in her declaration: "On September 7, 2023, I received an email from Mr. Jusuf Mr. Jusuf sent the email on the very day I was scheduled to travel abroad. I had a plane to catch and packing to complete. I calendared what I believed at the time was the deadline to respond to Plaintiff's Request[s] for Production (Set Three) and left the office." Uwechue Decl. (ROA 509) ¶ 10. Counsel further states: "When I returned to the US (while catching up with emails and my workload) I prepared objections and responses to Plaintiff's Request for Production (Set Three) based on what I had calendared on September 7, 2023. It was not until I received Mr. Jusuf's email on Friday, September 15, 2023, that I realized that I had miscalendared the deadline to respond to the requests." <i>Id.</i> ¶ 11. The statements in Diamond ZB's counsel's declaration contradict her August 25, 2023 email to plaintiff's counsel, in which Diamond ZB's counsel stated: "Sept 8, 2023, is our deadline to respond to the RFP set 3" Jusuf Decl. (ROA 685) Ex. 2. As an initial matter, neither section 128(a)(8) nor section 473(b) provides authority for relief from waiver of objections for failure to file timely discovery responses. <i>See Zellerino v. Brown</i> (1991) 235 Cal.App.3d 1097, 1107 ("Relief under section 473 is unavailable when the discovery act provides analogous, if more limited, relief."). Section 2031.300(a) addresses relief from waiver of objections due to untimely responses to requests for production: "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply: "(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product The court, on motion, may relieve that from
--	--	---

		this waiver on its determination that both of the following conditions are satisfied: “(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280. (2) The party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” Civ. Proc. Code § 2031.300(a). Diamond ZB has not demonstrated that either required condition for relief pursuant to section 2031.300(a) has been satisfied. Diamond ZB’s responses and objections to the Third Set, attached as Exhibits G and H to the Uwechue Reply Declaration, are not in substantial compliance with sections 2031.210, 2031.220 and 2031.230. For example, Diamond ZB served its responses and objections in two documents, and therefore the responses and objections are not “in the same sequence as the corresponding item or category in the demand.” Civ. Proc. Code § 2031.210(c). As another example, the responses to Request Nos. 5, 7, and 27 do not contain a statement that Diamond ZB will comply with the particular demand for inspection or a representation that Diamond ZB lacks the ability to comply with the demand for inspection. <i>Id.</i> § 2031.210(a). Diamond ZB’s failure to serve Code-compliant responses to requests for production has been addressed in a prior court order (see 8/17/23 Order (ROA 435)), and is again addressed in the court’s concurrent order on plaintiff’s motion for issue, evidentiary and monetary sanctions. Nor does Diamond ZB’s counsel’s declaration demonstrate that Diamond ZB’s failure to serve timely responses was the result of mistake, inadvertence, or excusable neglect. Counsel sent an email on August 25, 2023 stating Diamond ZB’s responses were due on September 8, 2023. A month later counsel filed a declaration in support of Diamond ZB’s motion for relief from waiver stating that on September 7, 2023 counsel calendared “what [she] believed at the time was the deadline to respond to Plaintiff’s Request[s] for Production (Set Three) and left the office.” In neither of her declarations filed in support of this motion does counsel explain her statement in her August 25, 2023 email that Diamond ZB’s responses were due on September 8, 2023, or state what response date she allegedly calendared on September 7, 2023, or state what date she “believed at the time” was Diamond ZB’s deadline to respond. On this record, the court cannot conclude that Diamond ZB’s tardy responses were the result of mistake, inadvertence or excusable neglect. Diamond ZB filed its protective order motion on September 15, 2023, after Diamond ZB had served its untimely responses and objections to the Third Set. In its protective order motion,
--	--	---

		Diamond ZB recasts its waived objections as grounds for a protective order relieving Diamond ZB from any obligation to serve responses to 24 of the 27 requests for production in the Third Set. Specifically, Diamond ZB argues the 24 requests (i) seek irrelevant information, (ii) violate individual and corporate privacy rights, (iii) seek trade secret, proprietary, and/or competitive information, (iv) seek information in the public record or otherwise equally available to plaintiff, (v) are overbroad, burdensome and oppressive, (vi) seek attorney-client privileged information, and/or (vii) seek information protected by the attorney work product doctrine. Diamond ZB raised each of these objections in its untimely responses and objections to the Third Set. See Jusuf Decl. (ROA 683) Exs. 5 & 6. Diamond ZB cannot revive its waived objections by filing a protective order motion restating the same objections after it waived them. If Diamond ZB could successfully assert waived objections as grounds for a protective order filed after it waived the objections by serving untimely responses, its waiver of objections—a circumstance expressly provided for in the Discovery Act (see Civ. Proc. Code § 2031.300(a))—would be meaningless. The circumstances here are nothing like those in <i>Stadish v. Superior Court</i> (1999) 71 Cal.App.4th 1130, 1143-44, where the responding party sought a protective order restricting dissemination of documents it produced after waiving its objections and producing most of the documents requested. See also <i>Nativi v. Deutsche Bank Nat'l Trust Co.</i> (2014) 223 Cal.App.4th 261, 317 (“Appellants’ motion for a protective order was not untimely as a matter of law because it was made after the order compelling further deposition and production, <i>especially since it was contesting the dissemination of the documents, not their production.</i>”) (emphasis added). In contrast to <i>Stadish</i> and <i>Nativi</i>, Diamond ZB contests the production of the documents, not the dissemination of documents it has already produced. Diamond ZB’s requests for judicial notice in its opening and reply briefs in support of the motion for relief from waiver are denied. See Cal. R. Ct. 3.1113(/) (“Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c).”). Plaintiff’s request for sanctions in her opposition to Diamond ZB’s protective order motion is denied. Plaintiff to give notice.
5	Olmos v. Mall Food Management Associates, LLC	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for

	2019-01096292	preliminary approval of a class action and PAGA settlement. The court grants the motion as follows: \$10,000.00 for enhancement payment to plaintiff (not to exceed); \$122,500.00 for attorneys' fees (not to exceed 35% of gross settlement amount); \$18,000.00 for litigation costs (not to exceed); \$8,000.00 for settlement administration costs (not to exceed); and \$30,000.00 total PAGA penalties (\$22,500.00 to the LWDA). The parties shall provide the following in the motion for final approval: 1. Plaintiff must present a full report to the court of all exclusions, objections and disputes received. The court will consider any objections at the final approval hearing. 2. The court has wide discretion in assessing the reasonableness of fees, including basing fees on the percentage of fund method, conducting a lodestar crosscheck on a percentage fee, or foregoing a lodestar crosscheck and using other means to evaluate the reasonableness of a requested percentage fee. <i>Laffitte v. Robert Half Int'l Inc.</i> (2016) 1 Cal.5th 480, 506. The parties must include sufficient information in the motion for final approval to enable the court to conduct a lodestar crosscheck, such as billing records and documentation of costs. 3. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. <i>Barnes, Crosby, Fitzgerald & Zeman, LLP v. Ringler</i> (2012) 212 Cal.App.4th 172, 184; Cal. R. Ct. 3.769(b). 4. In order for the court to determine the appropriate amount of plaintiff's enhancement at final approval, plaintiff should submit a declaration addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272 and <i>Clark v. American Residential Servs., LLC</i> (2009) 175 Cal.App.4th 785, 804, including an estimate of the hours spent on this litigation. 5. The settlement administrator should provide an estimated high and low for individual settlement payments, and plaintiff's individual payout. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
--	---------------	---